

# SOFTWARE DEVELOPMENT AND DATA PROCESSING AGREEMENT

**Agreement No:** SDPA-2026-001

**Effective Date:** 01 January 2026

This Software Development and Data Processing Agreement ("Agreement") is entered into between:

**Keppel Infrastructure Solutions Pvt. Ltd.** ("Client")

and

**ABC Analytics Technologies Pvt. Ltd.** ("Service Provider")

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## 1. Definitions

1.1 "Confidential Information" means all information disclosed by one party to another party, whether orally, electronically, or in writing, including technical specifications, source code, customer information, pricing, financial information, and trade secrets.

1.2 "Personal Data" shall have the meaning assigned under the Digital Personal Data Protection Act, 2023.

1.3 "Deliverables" means software, documentation, models, APIs, reports, source code, and any related materials developed under this Agreement.

1.4 "Applicable Laws" includes all laws, regulations, ordinances, and governmental requirements applicable within India.

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## 2. Scope of Work

2.1 The Service Provider shall design, develop, test, deploy, and maintain machine learning systems for automated compliance analysis.

2.2 The Deliverables shall include:

- Document ingestion pipeline
- OCR processing module
- Retrieval-Augmented Generation system
- Compliance report generation engine
- Web-based dashboard

2.3 The Client shall provide timely access to documents, infrastructure, and relevant stakeholders.

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## 3. Payment Terms

3.1 Total contract value shall be INR 50,00,000.

3.2 Payment shall be released according to the following schedule:

| Milestone             | Amount        |
|-----------------------|---------------|
| Design Approval       | INR 10,00,000 |
| MVP Delivery          | INR 15,00,000 |
| UAT Completion        | INR 15,00,000 |
| Production Deployment | INR 10,00,000 |

3.3 Delayed payments beyond thirty (30) days shall attract interest at 1.5% per month.

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## 4. Confidentiality Obligations

4.1 Each party shall maintain strict confidentiality regarding Confidential Information.

4.2 Confidential Information shall not be disclosed to any third party without prior written consent.

4.3 The obligations under this Clause shall survive termination for a period of five (5) years.

4.4 Disclosure may be made where required by law, court order, or governmental authority.

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## 5. Data Protection and Privacy

5.1 Both parties shall comply with the Digital Personal Data Protection Act, 2023.

5.2 Personal Data shall only be processed for purposes expressly authorized by the Client.

5.3 Personal Data shall be encrypted at rest and in transit.

5.4 Any data breach shall be reported within twenty-four (24) hours of discovery.

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## 6. Intellectual Property Rights

6.1 All Deliverables developed under this Agreement shall become the exclusive property of the Client upon full payment.

6.2 Pre-existing intellectual property owned by either party shall remain the property of that party.

6.3 The Service Provider shall retain ownership of generic frameworks and reusable components developed independently of the project.

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## 7. Compliance Requirements

7.1 The Service Provider shall comply with:

- Information Technology Act, 2000
- Digital Personal Data Protection Act, 2023
- Companies Act, 2013
- Prevention of Corruption Act, 1988

7.2 The Service Provider shall maintain appropriate records for audit purposes for a period of seven years.

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## 8. Cybersecurity Obligations

8.1 Multi-factor authentication shall be enabled for all production systems.

8.2 Access logs shall be retained for at least twelve (12) months.

8.3 Vulnerability assessments shall be conducted quarterly.

8.4 Critical vulnerabilities shall be remediated within seven (7) business days.

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## 9. Criminal Liability and Applicable Penal Provisions

9.1 Unauthorized access to computer resources may constitute an offense under Section 43 of the Information Technology Act, 2000.

9.2 Identity theft involving electronic records may attract liability under Section 66C of the Information Technology Act, 2000.

9.3 Cheating by personation using computer resources may attract liability under Section 66D of the Information Technology Act, 2000.

9.4 Breach of trust involving confidential business information may attract criminal liability under relevant provisions of the Indian penal laws.

9.5 Any act involving forgery of electronic records may attract prosecution under applicable criminal statutes.

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## 10. Incident Reporting

10.1 Security incidents shall be reported immediately.

10.2 Incident reports shall include:

- Nature of incident
- Systems affected
- Data impacted

- Root cause
- Corrective actions

10.3 A preliminary report shall be submitted within 24 hours.

10.4 A final report shall be submitted within 7 business days.

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## **11. Audit Rights**

11.1 The Client may conduct audits upon providing fifteen (15) days written notice.

11.2 The Service Provider shall cooperate fully during audits.

11.3 Audit findings shall be remediated within timelines specified by the Client.

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## **12. Limitation of Liability**

12.1 Except for fraud, willful misconduct, confidentiality breaches, or intellectual property infringement, total liability shall not exceed the contract value.

12.2 Neither party shall be liable for indirect, incidental, or consequential damages.

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## **13. Force Majeure**

13.1 Neither party shall be liable for delays caused by events beyond reasonable control.

13.2 Force majeure events include:

- Natural disasters
- War
- Terrorist attacks
- Government restrictions
- Pandemic outbreaks

13.3 The affected party shall notify the other party within five (5) days.

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## 14. Termination

14.1 Either party may terminate this Agreement with sixty (60) days written notice.

14.2 Immediate termination may occur if:

- Material breach remains uncured for 30 days.
- Bankruptcy proceedings commence.
- Fraudulent conduct is established.

14.3 Upon termination, all Client data shall be returned or securely destroyed.

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## 15. Dispute Resolution

15.1 Any dispute shall first be resolved through good-faith negotiations.

15.2 Failing negotiation, disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996.

15.3 The seat of arbitration shall be New Delhi.

15.4 Proceedings shall be conducted in English.

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## 16. Governing Law and Jurisdiction

16.1 This Agreement shall be governed by the laws of India.

16.2 Courts located in Delhi shall have exclusive jurisdiction.

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## Annexure A – Regulatory Compliance Matrix

| Regulation                   | Requirement              |
|------------------------------|--------------------------|
| DPDP Act 2023                | Personal Data Protection |
| IT Act 2000                  | Cybersecurity Compliance |
| Companies Act 2013           | Corporate Governance     |
| Prevention of Corruption Act | Anti-Bribery Controls    |

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## Annexure B – Security Controls

1. AES-256 Encryption
2. TLS 1.3 Communication
3. Quarterly Penetration Testing
4. Security Information and Event Management (SIEM)
5. Disaster Recovery Procedures